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CASE

NAME: Ke

Jiang v. Longzhu Wang

Cross-Defendant

Ke Jiang's Motion for an Order Expunging Lis Pendens' [sic] and for Attorneys' Fees and Costs in the Amount of \$13,860

TENTATIVE

RULING

The Court GRANTS in part Cross-Defendant Ke Jiang's Motion for an Order Expunging Lis Pendens' [sic] and for Attorneys' Fees and Costs. Cross-Complainant Longzhu Wang's lis pendens recorded against that certain real property located at 15713 Dimity Avenue, Chino Hills, California 91709, is/are hereby EXPUNGED. Cross-Complainant Wang must record a notice of said expungement and file proof of same with the Court within 30 calendar days of the Court's order.

Cross-Complainant Longzhu Wang and Wang's Counsel of Record must further pay Cross-Defendant Ke Jiang's attorney fees and costs in the amount of \$3,060.00 to Jiang's counsel within 30 calendar days of the Court's order.

Cross-Defendant Ke Jiang is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a business dispute. On January 27, 2025, plaintiffs Ke Jiang and Wanvo Holdings Inc. filed this action against defendant Longzhu Wang (Defendant or Wang) and Does 1 through 50, alleging causes of action for breach of contract, assault, and intentional infliction of emotional distress. On April 17, 2025, plaintiff Ke Jiang (Jiang) filed the operative First Amended Complaint (FAC) against defendants Longzhu Wang, Chengdu Duchengnanzhuang Fushi Co., and Does 1 through 50, alleging causes of action for breach of contract, intentional infliction of emotional distress, and specific performance.

On September 3, 2025, after the Court sustained Wang's demurrer to the FAC, Plaintiff filed the operative Second Amended Complaint (SAC) against Wang and Does 1 through 50, alleging causes of action for breach of contract and intentional infliction of emotional distress.

On November 17, 2025, after the Court sustained Wang's demurrer to the SAC, Plaintiff filed the operative Third Amended Complaint (TAC) against Wang and Does 1 through 50, alleging one cause of action for intentional infliction of emotional distress.

On May 29, 2025, cross-complainant Longzhu Wang (Wang or Cross-Complainant) filed a cross-complaint against Ke Jiang (Jiang), Bao Yan Guo (Guo), Wanvo Holdings Inc. (collectively, Cross-Defendants), and Does 1 through 50, alleging causes of action for breach of contract, fraud/intentional misrepresentation, constructive fraud, money had and received, sexual battery, battery, false imprisonment, intentional infliction of emotional distress, the Bane Act violation, and imposition of constructive trust.

On June 20, 2026, Cross-Defendant Jiang moved to expunge Cross-Complainant Wang's lis pendens. On July 27, 2026, Wang opposed the Motion. Jiang did not reply to Wang's Opposition.

LEGAL STANDARD

At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. However, a person who is not a party to the action shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge the

notice. Evidence or declarations may be filed with the motion to expunge the notice. The court may permit evidence to be received in the form of oral testimony, and may make any orders it deems just to provide for discovery by any party affected by a motion to expunge the notice. The claimant shall have the burden of proof under Sections 405.31 and 405.32.

(Code Civ.
Proc., § 405.30.)

“In proceedings under this chapter, the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim. The court shall not order an undertaking to be given as a condition of expunging the notice where the court finds the pleading does not contain a real property claim.” (Code Civ. Proc., § 405.31.)

PRELIMINARY ISSUES

Jiang's

Motion cites an unpublished trial court decision, namely Pawnee Leasing Corp. v. Island Pac. Hayward, 2018 Cal. Super. LEXIS 50164. (Motion, 6:15-16.) This is improper. (See Aguirre v. Amscan Holdings, Inc. (2015) 234 Cal.App.4th 1290, 1298, fn. 5.) The Court admonishes Jiang to cite proper cases going forward.

Wang's

Opposition was untimely filed on July 27, 2026, when the deadline was July 24, 2026. (Code Civ. Proc., § 1005, subd. (b).) The Court will still consider Wang's Opposition, but admonishes Wang to comply with the Code of Civil Procedure going forward. (See Cal. Rules of Court, rule 3.1300, subd. (d); Juarez v. Wash Depot Holdings, Inc. (2018) 24 Cal.App.5th 1197, 1202.)

DISCUSSION

Summary
of Arguments

Cross-Defendant

Jiang moves to expunge Cross-Complainant Wang's lis pendens recorded against Jiang's

real property located at 15713 Dimity Avenue, Chino Hills, California 91709 (the Property). Jiang argues that a lis pendens may be recorded only by a party asserting a “real property claim,” i.e., one that, if meritorious, would affect title to or the right to possession of specific real property under Code of Civil Procedure sections 405.4, 405.20, and 405.31, and that the claimant bears the burden of showing the pleading contains such a claim. Jiang contends Wang’s Cross-Complaint alleges only that Jiang fraudulently obtained roughly \$600,000 and used those funds to buy the Property, which under Lewis, Urez, and Shoker is a claim for money that serves merely as a collateral means to secure a debt and cannot support a lis pendens. Jiang points to paragraph 92 of the Cross-Complaint, which requests for a constructive trust “to the extent of the funds wrongfully taken from her” as showing Wang seeks money rather than the Property. Jiang contends that Wang never owned, occupied, or held title to the parcel, and argues her remedy lies in attachment law, not a lis pendens. Jiang further argues that section 405.38 directs the Court to award the prevailing party its reasonable fees and costs, and that fees are just here because he attempted to meet and confer and Wang declined to withdraw the lis pendens. Jiang requests \$13,860 in attorney fees and costs.

In opposition, Wang argues that because Jiang moved solely under section 405.31, review is limited to a demurrer-like analysis of the pleading under Kirkeby, and that Jiang improperly asks the Court to look past the allegations to find a debt-collection purpose. Wang contends the Cross-Complaint identifies the specific parcel, alleges that fraudulently obtained funds (including \$300,000 paid for an undelivered 60% interest in Wanvo) were traced into its purchase, alleges Jiang and Guo hold title as involuntary trustees under Civil Code section 2224, and seeks a declaration that title is held in trust for Wang’s benefit, which if meritorious would affect title and satisfy section 405.4. Wang argues that Lewis and Shoker do not permit a court to disregard express title allegations, that Lewis never reconciled section 2224’s tracing principles with section 405.4’s “if meritorious” standard, and that the California Supreme Court has twice declined to decide whether a constructive-trust claim may support a lis pendens. On fees, Wang argues that a denied motion leaves Jiang without prevailing-party status under section 405.38, and that in any event Wang acted with substantial justification given the unresolved doctrinal question and the alleged risk of transfer of the property. Wang further contends the \$13,860 demand is excessive for a five-page motion, that rests on duplicative and clerical billing and not-yet-incurred anticipated hours, and is supported by declarations executed March 6, 2026

(months before the July 2026 motion), and a claimed \$60 fee contradicted by the court's \$0.00 "NOFEE" receipt. Wang contends Jiang improperly seeks fees against counsel without statutory authority.

Analysis

– Lis Pendens

The Court finds the Cross-Complaint fails to allege facts supporting Wang's maintenance of the lis pendens on the Property. In a motion to expunge lis pendens under Code of Civil Procedure section 405.31, the trial court engages in a "demurrer-like analysis" limited to "whether the pleading states a real property claim." (Kirkeby v. Superior Ct. (2004) 33 Cal.4th 642, 647-648 (Kirkeby).) Jiang brought this Motion under Code of Civil Procedure section 405.31, so the "demurrer-like analysis" applies to this Motion. (See *ibid.*; see generally, Motion.)

"A

lis pendens may be filed by any party in an action who asserts a 'real property claim.' [Citation.]" (Newell v. Superior Ct. of Los Angeles Cnty. (2024) 107 Cal.App.5th 728, 734 (Newell).) "The party opposing a motion to expunge has the burden of showing the existence of a real property claim. [Citation.]" (Id. at p. 735.) "'Real property claim' means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property..." (Code Civ. Proc., § 405.4; Newell, *supra*, 107 Cal.App.5th at p. 735.)

Wang's lis pendens is predicated on the Tenth Cause of Action for imposition of constructive trust. (Cross-Compl., ¶¶ 85-93.) There are two subtypes of constructive trust claims: (1) "[those] that are akin to fraudulent conveyance claims because they seek a constructive trust on real property that was itself wrongfully taken and, if successful on the merits, plaintiffs would regain title to or possession of the same property"; and (2) "[those] seeking a constructive trust or equitable lien on different property, merely as a means to secure collection of a debt". (Shoker v. Superior Ct. of Alameda Cnty. (2022) 81 Cal.App.5th 271, 282–283 (Shoker).) The latter subtype cannot support a lis pendens. (See *id.* at p. 283.) "The fact that someone buys property with stolen money does not make the victim the owner of that property as a matter of real property law. It merely entitles the victim to pursue the thief and to recover a money judgment, perhaps seeking to attach the property along the way..." (Lewis v. Superior Ct. (1994) 30 Cal.App.4th 1850, 1863

(Lewis).) No real property claim exists where the complaint only alleges that the defendant wrongfully took the plaintiff's money and used it to buy, i.e., not convey, the property. (Id. at p. 1865.)

Here, the Cross-Complaint expressly alleges that Cross-Defendants Jiang and Guo "misappropriated the money to purchase the residential property located at 15713 Dimity Avenue, Chino Hills, California 91709, which they currently occupy as their primary residence." (Cross-Compl., ¶ 89.) This is precisely the subtype of constructive trust claim that the law says is not a real property claim and therefore fails to support maintaining a lis pendens. (See Shoker, supra, 81 Cal.App.5th at pp. 282–283; Lewis, supra, 30 Cal.App.4th at p. 1863.) The Cross-Complaint also alleges that it seeks a constructive trust "to the extent of the funds wrongfully taken from [Plaintiff]." (Cross-Compl., ¶ 92.) This is one of the exact same problems addressed in Lewis. The claimant claimed an "interest in the property 'only to the extent the monies it alleges were wrongfully obtained have been invested therein'". The Court of Appeal found this undermined the claimant's lis pendens. (Lewis, supra, 30 Cal.App.4th at p. 1865.)

Based on the foregoing, the Court GRANTS the Motion.

Cross-Complainant Wang's lis pendens is/are hereby EXPUNGED. Cross-Complainant Wang must record a notice of expungement of all lis pendens within 15 calendar days of this order.

Analysis – Attorney Fees and Costs

With respect to attorney fees and costs, Jiang is the prevailing party and therefore entitled to attorney fees and costs unless the Court finds Wang acted with substantial justification or that other circumstances make their imposition unjust. (Code Civ. Proc., § 405.38; Castro v. Superior Ct. (2004) 116 Cal.App.4th 1010, 1018.) The Court finds Wang did not act with substantial justification and that there are no other circumstances make their imposition unjust. As discussed above, the allegations in the Cross-Complaint make it abundantly clear that Wang's constructive trust claim is one for money and not for real property, which the law says does not support the maintenance of a lis pendens.

Nevertheless, the Court finds Jiang's counsel's claimed attorney fees excessive. The Court finds that 15 hours on a seven-page motion and two short declarations with one exhibit attached is excessive and unreasonable.

(See generally Castaneda Decl., Musto Decl.) As for the \$60.00 filing fee, the CRS reservation receipts do not always show the fee being charged at the time the reservation is made. The Motion would not have been scheduled for hearing if Jiang had not paid the filing fee. The Court awards Jiang \$3,060.00 in attorney fees and costs against Wang and Wang's counsel, jointly and severally, comprised of 5.0 hours preparing the Motion and 1.0 hour appearing at the hearing on this Motion, multiplied by a \$500.00 hourly rate, plus the \$60.00 filing fee. Wang and Wang's counsel must pay said attorney fees and costs to Jiang's counsel within 30 calendar days of the Court's order.

CONCLUSION

The Court GRANTS in part Cross-Defendant Ke Jiang's Motion for an Order Expunging Lis Pendens' [sic] and for Attorneys' Fees and Costs. Cross-Complainant Longzhu Wang's lis pendens recorded against that certain real property located at 15713 Dimity Avenue, Chino Hills, California 91709, is/are hereby EXPUNGED. Cross-Complainant Wang must record a notice of said expungement and file proof of same with the Court within 30 calendar days of the Court's order.

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